

BEFORE THE IOWA BOARD OF BEHAVIORAL HEALTH PROFESSIONALS

IN THE MATTER OF

Benjamin Skeers
License No. 007710

RESPONDENT

CASE NO.: 22-0226, 22-0326, 22-0331, 22-0335

**VOLUNTARY SURRENDER OF
LICENSE THROUGH CONSENT
ORDER**

COME NOW the Iowa Board of Behavioral Health Professionals (“Board”) and Benjamin Skeers (“Respondent”) and enter into this Voluntary Surrender of License through Consent Order (“Voluntary Surrender”) pursuant to Iowa Code sections 17A.10(1) and 272C.3(4).

A. JURISDICTION AND BACKGROUND

1. **Iowa License.** Respondent was previously issued Iowa social worker’s license number 007710. Respondent’s Iowa social worker’s license is inactive and expired on December 31, 2022.

3. **Jurisdiction.** The Board has jurisdiction in this matter pursuant to Iowa Code chapters 147, 154C, and 272C.

B. STATEMENT OF CHARGES

Count I

4. Respondent is charged under 481 IAC 504.2(2)(c) for failure to exercise the degree of care which is ordinarily possessed and applied by other social workers acting in the same or similar circumstances.

Count II

5. Respondent is charged under 481 IAC 504.2(9) for being convicted of an offense that directly relates to the duties and responsibilities of the profession.

Count III

6. Respondent is charged under 481 IAC 504.2(27)(c) for engaging in unethical conduct; betrayal of a professional confidence; and

Count IV

7. Respondent is charged under 481 IAC 504.2(27)(d) for engaging in unethical conduct; engaging in a professional conflict of interest.

C. FACTUAL CIRCUMSTANCES

8. On or about the date of November 1, 2022, the Respondent was arrested and charged in the Iowa District Court for Polk County, with drug distribution to a person under eighteen (18) and use of a minor in drug trade. Said person under eighteen (18) was Respondent's patient.

9. On November 9, 2022, the Respondent and the Board entered into an Agreement Not to Practice.

10. On September 17, 2023, the Respondent entered a guilty plea to a Class "C" Felony in connection with the events leading up to his arrest on November 1, 2022.

11. On January 9, 2024, the Respondent was sentenced to a prison term not to exceed ten (10) years related to the charges he entered a guilty plea to on September 17, 2023.

D. SETTLEMENT AGREEMENT

12. Without admission of wrongdoing or guilt, Respondent does not contest the violations alleged in the above-stated statement of charges.

13. Respondent acknowledges that he has a right to a hearing before the Board on the merits of the charges. By freely and voluntarily executing this Voluntary Surrender, Respondent waives his right to a hearing and all attendant rights, including the right to seek judicial review. This Voluntary Surrender constitutes the final agency order in this contested case.

14. Respondent agrees that the Assistant Attorney General may present this Voluntary Surrender to the Board and may have *ex parte* communications with the Board while presenting it. Respondent waives any right of notice of this meeting or any right that the Respondent might have to participate in the discussion of this Voluntary Surrender among the Board and the Assistant Attorney General.

15. This Voluntary Surrender shall be part of the disciplinary record and permanent licensure file of Respondent and shall be considered by the Board in determining the nature and severity of any future disciplinary action to be imposed in the event of any future violations of the laws and rules governing the practice of social work by the Respondent.

16. Respondent shall at all future times fully and promptly comply with all pertinent orders of the Board and the statutes and Board rules regulating the practice of social work. Failure to comply with the terms of this Voluntary Surrender shall be *prima facie* evidence of a violation of Iowa Code section 272C.3(2)(a) and shall be grounds for further disciplinary action. However, no action may be taken against Respondent for violations of this Voluntary Surrender without a hearing, or waiver of hearing.

17. This Voluntary Surrender is not binding on Respondent or the Board until it has been formally approved by a majority of the Board members.

(a) If this Voluntary Surrender is rejected by the Iowa Board of Behavioral Health Professionals, it shall be of no force or effect to either party and it shall not be admissible for any purpose in further proceedings in this matter.

(b) If the Iowa Board of Behavioral Health Professionals approves this Voluntary Surrender, it shall fully dispose of all issues in this case.

18. Upon acceptance by both the Board and Respondent, this Voluntary Surrender shall be a public record available for inspection and copying in its entirety in accordance with the requirements of Iowa Code chapter 22.

19. Respondent understands that the Board will report this Voluntary Surrender to the National Practitioner Databank.

20. Respondent shall submit a copy of this Voluntary Surrender to all licensing boards where Respondent holds a license, whether active or not, within **THIRTY days** of the date of the Board approval of this Voluntary Surrender.

CONSENT ORDER

IT IS THEREFORE ORDERED:

A. VOLUNTARY SURRENDER: The Respondent voluntarily agrees to surrender his Iowa License 007710 to the Iowa Board of Behavioral Health Professionals as sanction for the above-admitted violations. The effective date of the license surrender shall be the date this Voluntary Surrender is accepted by the Iowa Board of Behavioral Health Professionals.

B. LICENSEE REAPPLICATION: Reinstatement of Respondent's Iowa license shall be

governed by 481 IAC 506.31 Respondent specifically acknowledges that pursuant to this agreement, Respondent shall not be eligible to seek reinstatement of his license for a minimum of one year from the date his license surrender is effective.

WHEREFORE, the terms of this Voluntary Surrender of License through Consent Order are agreed to by the Iowa Board of Behavioral Health Professionals.

FOR THE RESPONDENT:

Voluntarily agreed to and accepted by Benjamin Skeers on this 29 day of November, 2024.


By: Benjamin Skeers, Respondent

FOR THE IOWA BOARD OF BEHAVIORAL HEALTH PROFESSIONALS:

Voluntarily agreed to and accepted by the **IOWA BOARD OF BEHAVIORAL HEALTH PROFESSIONALS** on this 25th day of March, 2025.



Aaron Culley, Chair
Iowa Board of Behavioral Health Professionals